

**EMERGENCY APPLICATION
FOR INVOLUNTARY COMMITMENT WITHOUT CERTIFICATION
UP TO 72 HOURS TO**

Local Mental Health Authority

_____, 20____

To The Director:

I, _____, a duly authorized mental health or peace officer have observed _____, in conduct which leads me to believe that there is probable cause that _____, is mentally ill and that there is substantial likelihood of serious harm to self or others unless taken into protective custody pending proceedings for examination and certification. I hereby make application for commitment of the said proposed patient to: _____.

Proposed Patient
Proposed Patient
Local Mental Health Authority

I took the proposed patient into protective custody under the following circumstance(s):

- (a) Statement of facts which called proposed patient to attention of officer: _____

- (b) Specific nature of danger: _____

- (c) Summary of observation upon which the statement of danger is based: _____

Names and addresses of persons to be notified of placement in custody of local mental health authority:

Guardian: _____
Address Phone

Adult Family: _____
Address Phone

Other: _____
Address Phone

Police officer or Mental Health Officer phone number

Signature of Mental Health Officer or Peace Officer

INSTRUCTIONS

If a duly authorized peace officer observes a person involved in conduct that gives the officer probable cause to believe that the person is mentally ill, as defined in Section 26B-5-301, and because of that apparent mental illness and conduct, there is a substantial danger to self or others to that person or others, pending proceedings for examination and certification under this part, the officer may take that person into custody. The peace officer shall transport the person to the designated facility of the appropriate local mental health authority pursuant to this section, either on the basis of his own observation or on the basis of a mental health officer's observation that has been reported to him by that mental health officer. Utah Code Ann. Sect. 26B-5-331 also states that "[t]ransportation of persons with a mental illness pursuant to Subsections (1) and (2) shall be conducted by the appropriate municipal, or city or town, law enforcement authority or, under the appropriate law enforcement's authority, by ambulance or nonemergency secured behavioral health transport to the extent that Subsection (5) applies." Immediately thereafter, the officer shall place the person in the custody of a local mental health authority and make application for commitment of that person to the local mental health authority. A person committed under this section may be held for a maximum of 72 hours, excluding Saturdays, Sundays, and legal holidays. At the expiration of that time period, said person shall be released unless application for involuntary commitment has been commenced pursuant to Section 26B-5-332.

Pursuant to UCA 26B-5-301 "Substantial Danger" means that, due to mental illness, an individual is at serious risk of

- (a) suicide;
- (b) serious bodily self-injury;
- (c) serious bodily injury because the individual is incapable of providing the basic necessities of life, including food, clothing, or shelter;
- (d) causing or attempting to cause serious bodily injury to another individual;
- (e) engaging in harmful sexual conduct; or
- if) if not treated, suffering severe and abnormal mental, emotional, or physical distress that: is associated with significant impairment of judgment, reason, or behavior; and causes a substantial deterioration of the individual's previous ability to function independently.

As outlined in UCA 26B-5-331 if at any time the patient committed under that section no longer meets the commitment criteria described in Subsection (1), the local mental health authority or their designee shall:
document the change and release the patient; and
if the patient was admitted under Subsection (1)(b) by a peace officer or mental health officer, notify the peace officer or mental health officer of the patient's release.